

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                        |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Anthony Cennamo                 | Team:<br>Squad #05                  | CCRB Case #:<br>201510218 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input type="checkbox"/> Abuse                         | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 11/24/2015 6:30 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/24/2017   | Precinct:<br>52                                        |                                               |                                 |
| Date/Time CV Reported<br>Tue, 11/24/2015 7:10 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 12/02/2015 11:17 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM Fairuze Edoo   | 06355  | 946967 | 052 PCT |
| 2. POM Patrick Horkan | 24124  | 947084 | 052 PCT |

| Witness Officer(s)   | Shield No | Tax No | Cmd Name |
|----------------------|-----------|--------|----------|
| 1. POM Tony Basilio  | 06027     | 933635 | 052 PCT  |
| 2. POM Sonny Collado | 03851     | 948796 | 052 PCT  |

| Officer(s)             | Allegation                                                        | Investigator Recommendation |
|------------------------|-------------------------------------------------------------------|-----------------------------|
| A . POM Patrick Horkan | Discourtesy: PO Patrick Horkan spoke discourteously to § 87(2)(b) | A . Unsubstantiated         |
| § 87(4-b) § 87(2)(g)   | § 87(2)(b)                                                        | § 87(2)(b)                  |
| § 87(2)(b)             | § 87(2)(b)                                                        | § 87(2)(b)                  |

### Case Summary

§ 87(2)(b) filed this complaint with IAB via phone on November 24, 2015, generating log number 15-36523. The complaint was received at the CCRB on December 2, 2015, via log number 2015-36880.

On November 24, 2015 at approximately 6:30 p.m., § 87(2)(b) was in her apartment with her boyfriend, § 87(2)(b), located in the Bronx at § 87(2)(b). § 87(2)(b) called 911 when § 87(2)(b) became verbally aggressive with her and at one point attempted to strike her. § 87(2)(b) also believed § 87(2)(b) had a knife. PO Tony Basilio, PO Sonny Collado, PO Fairuze Edoo and PO Patrick Horkan of the 52<sup>nd</sup> Precinct responded to the 911 call at approximately the same time. § 87(2)(b) did not want § 87(2)(b) to remain in the apartment, in which the officers responded by allowing § 87(2)(b) to pack his belongings and leave. § 87(2)(b) was upset that § 87(2)(b) was not being arrested and conveyed that to the officers. In response, PO Horkan allegedly told § 87(2)(b) “You can go fuck yourself” (**Allegation A**). PO Horkan and PO Edoo then left the scene, while PO Basilio and PO Collado remained because § 87(2)(b) requested a female officer and a supervisor come to the scene. § 87(2)(b) was not arrested or summonsed as a result of this incident.

There is no video footage or audio recording of this incident.

### Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). As of January 22, 2016, § 87(2)(b) has not filed a notice of claim in regards to this incident (Board Review 07). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

§ 87(2)(b) has filed one other complaint with the CCRB that was referred to the Office of the Chief of Department. (Board Review 22).

PO Horkan has been a member of the NYPD for seven years and has been the subject of three prior CCRB complaints involving six allegations. None of PO Horkan’s prior CCRB allegations were substantiated. § 87(2)(g)

### Findings and Recommendations

#### Allegation A -Discourtesy: PO Patrick Horkan spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated she was involved in a domestic dispute with her boyfriend, § 87(2)(b) at the incident location § 87(2)(b) in the Bronx on November 24, 2015. § 87(2)(b) called 911 and claimed she feared § 87(2)(b) would attack her with a knife. (Board Review 02).

§ 87(2)(b) waited for the responding officers in the lobby of her building. PO Horkan, PO Edoo, PO Collado and PO Basilio arrived at approximately the same time at the incident location. § 87(2)(b) expressed to the officers that she wanted § 87(2)(b) arrested for threatening her with a knife. PO Basilio and PO Collado went inside the apartment to speak with § 87(2)(b). PO Horkan and PO Edoo waited in the hallway that connects the apartment with the building lobby with § 87(2)(b). § 87(2)(b) claimed they allowed § 87(2)(b) to leave because he showed the officers a government issued identification. § 87(2)(b) could not elaborate on what type of identification was shown; § 87(2)(b) PO

Basilio and PO Collado allowed § 87(2)(b) to pack his belongings before escorting him out of the building. § 87(2)(b) then asked PO Horkan, who remained next to her, “What happens to me?” PO Horkan allegedly responded, “You can go fuck yourself.” § 87(2)(b) called 911 at multiple points thereafter to request a female officer and a supervisor to the scene. Lt. Ivan Gonzalez responded with his operator, PO Kayan Dawkins, who spoke with § 87(2)(b) briefly before left. § 87(2)(b) also called IAB to report PO Horkan’s alleged misconduct.

All of the officers provided statements mostly consistent with § 87(2)(b)’s account of the incident except that they deny her discourtesy allegation (Board Review 03-06). After being questioned briefly, § 87(2)(b) revealed to all of the officers on the scene that there was no knife involved in the incident. § 87(2)(b) also claimed that she was chaplain for the NYPD, but when asked by the officers to produce proof to verify this, she stated that she could not. PO Horkan and PO Edoo entered the apartment briefly with § 87(2)(b) to separate him from § 87(2)(b). PO Horkan allowed § 87(2)(b) to pack belongings. As PO Horkan, PO Edoo and § 87(2)(b) prepared to leave § 87(2)(b)’s apartment, PO Collado and PO Basilio entered the apartment with § 87(2)(b). All officers were around the hallway area with § 87(2)(b) during this time. PO Horkan denied ever telling § 87(2)(b) “You can go fuck yourself” at any point during the incident, and did not use the word “fuck” or any variation thereof during the incident. PO Basilio, PO Collado and PO Edoo did not hear PO Horkan tell § 87(2)(b) “You can go fuck yourself”. All three officers deny hearing PO Horkan use profanity at any point during the incident. All officers deny saying, “You can go fuck yourself”, or the use of any profanity at any point during the incident. (Board Review 03-06).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

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Squad:

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer:

\_\_\_\_\_  
Title/Signature

\_\_\_\_\_  
Print

\_\_\_\_\_  
Date